

7. 9:00 AM CASE NUMBER: C25-00149
CASE NAME: AMIR SAFFARIAN VS. ALI HASSAN
HEARING ON DEMURRER TO: 1ST AMENDED CROSS-COMPLAINT
FILED BY: SAFFARIAN, AMIR
TENTATIVE RULING:

CONTINUED to October 5, 2026 at 9:00 a.m.

8. 9:00 AM CASE NUMBER: C25-00149
CASE NAME: AMIR SAFFARIAN VS. ALI HASSAN
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

CONTINUED to October 5, 2026 at 9:00 a.m.

9. 9:00 AM CASE NUMBER: C25-01093
CASE NAME: SHILOH PARKER VS. CHANNING HAWKINS
*HEARING ON MOTION IN RE: DISQUALIFY ATTORNEY ALLISON RENEE BRACY
FILED BY: PARKER, SHILOH A.
TENTATIVE RULING:

Plaintiff Shiloh A. Parker ("Plaintiff") filed a motion for an order disqualifying Allison Renee Bracy ("Ms. Bracy") from serving as counsel for "herself, Bracy Law, and Channing Hawkins" in this lawsuit on May 11, 2026 (the "Motion to Disqualify Counsel"). The Motion to Disqualify Counsel was set for hearing on September 21, 2026. The motion is opposed.

Background

The operative complaint is Plaintiff's Third Amended Complaint filed June 24, 2026 (the "Current Operative Complaint"). The named defendants are Bracy Law PC (f/k/a BRACYHAWKINSLAW, PC), Channing Hawkins, Jendayi Saada, and Allison Renee Bracy (collectively, "defendants").

The Current Operative Complaint contains a single cause of action for slander as against all of the defendants. It is alleged that Channing Hawkins, Jendayi Saada, and Allison Renee Bracy "published false statements of fact about Plaintiff" regarding to assertions to the effect that Plaintiff stole money from her law clients. See Current Operative Complaint, ¶18.

Analysis

A court's authority to disqualify a lawyer in a pending proceeding derives from its inherent power to regulate the conduct of court officers, including attorneys, in furtherance of the sound administration of justice. *City of San Diego v. Superior Court* (2018) 30 Cal.App.5th 457, 469. Disqualification, however, is "a drastic remedy that should be ordered only where the violation of the privilege or other misconduct has a 'substantial continuing effect on future judicial proceedings.'" *Id.* at 462, quoting *Gregori v. Bank of America* (1989) 207 Cal.App.3d 291, 309.

Ultimately, disqualification motions involve a conflict between the clients' right to counsel of their choice

and the need to maintain ethical standards of professional responsibility. *People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145. “The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one’s choice must yield to ethical considerations that affect the fundamental principles of our judicial process.” *Id.*

Plaintiff contends that Ms. Bracy must be disqualified because she is a defendant in the action and a material witness to the circumstances underlying the claim. She also contends that Ms. Bracy has used her close relationship with the defendant to “obstruct the timely prosecution of this matter,” including as relates to discovery proceedings.

Ms. Bracy denies that she has personal knowledge of the subject alleged defamatory statements. See Declaration of Allison R. Bracy filed September 10, 2026 (“Bracy Decl.”) ¶¶4-7. She represents that she does “not presently anticipate offering testimony at trial concerning the merits of Plaintiff’s defamation claim because [she has] no percipient knowledge of the alleged defamatory publication.” *Id.* at ¶12.

The opposition also asserts a procedural defect in that the motion was never served. See *id.* at ¶14.

Service

A proof of service of the Motion to Disqualify Counsel was filed on May 11, 2026. It reflects service of the motion by electronic mail on Ms. Bracy at abracy@bracy.law. That email matches the email reflected on Ms. Bracy’s filed pleadings.

Merits

Rule 3.7(a) of the Rules of Professional Conduct provides that a “lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness...” See Cal. Rules of Prof. Conduct, Rule 3.7(a). “Trial” is not limited to representation only at the trial itself. Instead, “to effectuate the rule’s purpose of avoiding fact finder confusion, [courts] interpret the rule’s use of the term ‘trial’ to encompass a pretrial evidentiary hearing at which counsel is likely to testify.” *Doe v. Yim* (2020) 55 Cal.App.5th 573, 583. Moreover, “most courts recognize that an attorney who intends to testify at trial may not participate in ‘any pretrial activities which carry the risk of revealing the attorney’s dual role to the jury.’” *Id.* A testifying attorney should not take or defend depositions. *Id.*

This rule is subject to certain exceptions, including where the lawyer has obtained the client’s informed written consent. See Cal. Rules of Prof. Conduct, Rule 3.7(a)(1)-(3). “[T]he general rule is that an attorney may serve as both advocate and witness ... if the client has provided its informed written consent.” *Gerringer v. Blue Rider Finance* (2023) 94 Cal.App.5th 813, 822. However, this exception is not absolute, and a court can still limit an attorney’s role “to protect the trier of fact from being misled or the opposing party from being prejudiced.” *Id.* at 821-22. “The court’s discretion to disqualify a likely advocate-witness notwithstanding client consent – the exception to the exception – has been judicially interpreted to be permissible only upon **‘a convincing demonstration of detriment to the opponent or injury to the integrity of the judicial process.’**” *Id.* at 822.

“In exercising its discretion to disqualify counsel under the advocate-witness rule, a court must consider: (1) ‘whether counsel’s testimony is, in fact, genuinely needed’; (2) ‘the possibility [opposing] counsel is using the motion to disqualify for purely tactical reasons’; (3) ‘the combined effects of the strong interests parties have in representation by counsel of their choice, and in avoiding the duplicate expense and time-consuming effort involved in replacing counsel already familiar with the case.’” *Doe*, supra, 55

Cal.App.5th at 583 quoting *Smith, Smith & Kring v. Superior Court* (1997) 60 Cal.App.4th 573, 580-81. “[T]rial judges must indicate on the record they have considered the appropriate factors and make specific findings of fact when weighing the conflicting interests in recusal motions.” *Id.* at 584.

Having considered the totality of the evidence, the Court does not conclude that Plaintiff has adequately shown that Ms. Bracy is likely to be a material witness. And even if some tangential testimony were needed from her in relation to things like authentication of documents or other general matters, the Court concludes that lesser remedies are likely available. Ms. Bracy’s clients’ right to be represented by counsel of their choice (and to represent herself if she chooses) and their interests in avoiding the need for replacement counsel, strongly outweigh any relatively minor concern over any such tangential testimony that might be needed from Ms. Bracy. In addition, it appears that Plaintiff’s interest in disqualifying Ms. Brach stems from more tactical considerations, seeking to prevent her from participating as counsel given the close relationship with the other named defendants.

Furthermore, the Court does not find that Plaintiff has made a convincing demonstration that detriment to her or injury to the integrity of the judicial process would result from Ms. Bracy’s ongoing representation.

Nor does the Court conclude that the issues raised regarding asserted discovery compliance or lack thereof justifies or supports disqualification.

Disposition

The Court further finds and orders as follows:

1. The Motion to Disqualify Counsel is DENIED.
2. The Court shall issue the order.

10. 9:00 AM CASE NUMBER: C25-01690
CASE NAME: SHIMMICK CONSTRUCTION COMPANY, INC. VS. CITY OF ANTIOCH
***HEARING ON MOTION IN RE: COMPEL**
FILED BY:
TENTATIVE RULING:

Defendant City of Antioch (the “City”) filed a motion to compel compliance with deposition subpoena for production of business records (the “Motion to Compel”) to third party S. G. Banks, Inc. (the “Third Party”) on February 6, 2026. The motion was set for hearing on June 29, 2026 and, later, continued to September 21, 2026.

Background

The deposition subpoena was served on the Third Party on November 10, 2025. See Declaration of Harry J. Moren re Motion to Compel Compliance filed February 6, 2026, ¶13 and **Exhibit 2** thereto (including Proof of Service dated November 10, 2025). No responses to the subpoena were received by the filing of the Motion to Compel. *Id.* at ¶14.

The City was unable to serve the Third Party and filed an *ex parte* application for service by delivery to the Secretary of State. See Declaration of Harry J. Moren re Ex Parte Application filed May 19, 2026, ¶21-23 and **Exhibits 5, 6, and 7** thereto; Ex Parte Application re Authorization of Service filed May 19,